

25VECV06161 25VECV06161

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25VECV06161 Fitzgerald v Tarzana

Tentative ruling: Motion to vacate default – GRANT. Answer to be filed within 10 days.

CCP section 473b states, in part, “[t]he court may, upon any terms as may be just, relieve a party...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect...and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order or proceeding was taken.” (CCP section 473(b).) “Surprise” in CCP section 473(b) refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. (See *State Farm & Casualty Company v. Pietak* (2001) 90 Cal.App.4th 600, 611.) “When a party in default moves promptly to seek relief, very slight evidence is required to justify a trial courts order seeing aside a default.” (*Shamblin v. Brattain* (1988) 44 Cal.3d 474,478; *Misic v. Sears* (1995) 37 Cal.App.4th 1149,1154; *Uriarte v. United States Pipe & Foundry Co.* (1996) 51 Cal.App.4th 780, 789-790.) If some reasonable excuse was shown (even if disputed) and no prejudice to the opposing party will result from setting aside the default, broad discretion is allowed to courts in granting relief against default, and it is only in cases where lower court has abused its discretion that reviewing court will reverse action of the lower court. (*Thompson v. Sutton* (1942) 50 Cal.App.2d 272.) Even where relief is discretionary, i.e., there is no attorney affidavit of fault, a trial court's decision to set aside a default will not be overturned absent a clear abuse of discretion due to the strong policy of the law favoring trial on the merits. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227.) Due to this strong policy, any doubts in applying the statute authorizing

relief from default and default judgment must be resolved in favor of the party seeking relief from default. (Behm v. Clear View Technologies (2015) 241 Cal.App.4th 1, 8.)[Cited erroneously in moving papers as 541 Cal.App.4th.]

Here defendant Alyesh received the papers while his father was in the hospital and lost track of turning over the papers to his insurance company. Distraction by a personal family problem can cause such a delay in turning over the papers. Here, he was served with the papers on Feb. 19th. His response would have been due in March. Default was entered in April. When he returned from vacation and learned about the request to enter default, he immediately contacted his insurance company which assigned an attorney to the case. On May 13, 2026, counsel for defendant requested that the plaintiff sign a stipulation to set aside the default which was denied. This motion followed.

Under the circumstances, the court is inclined to grant relief. Here, there is a satisfactory explanation for the failure to respond timely. Furthermore, there is no prejudice to the plaintiff because defendant Carlisle was served in February 2026 and has not been defaulted. The case is not yet at issue.

For these reasons, the court finds it proper to exercise its discretion to vacate the default entered and to allow defendant Alyesh to file his proposed answer within 10 days. The CMC is continued to _____. Plaintiff to give notice to all appearing parties.